



CHAPTER xvi.

An Act for conferring further powers upon the Great Eastern Railway Company for extending the time limited by former Acts for the completion of works and the purchase of lands by the Company and for the purchase of lands by the Great Northern and Great Eastern Joint Committee and for other purposes.

A.D. 1915.

[9th June 1915.]

WHEREAS it is expedient that the Great Eastern Railway Company (in this Act called "the Company") be authorised to construct the works and to purchase the lands hereinafter described and to exercise the other powers in this Act specified :

And whereas it is expedient that the respective times limited for the completion by the Company of certain authorised works and for the compulsory taking of certain lands authorised to be acquired by the Company and the Great Northern and Great Eastern Joint Committee respectively should be extended as by this Act provided :

And whereas it is expedient that provision be made as in this Act contained with reference to the new pension supplemental scheme established under the provisions of the Great Eastern Railway (Pensions) Act 1898 :

And whereas it is expedient that the Company be empowered to apply their funds for the purposes of this Act and for those purposes and the general purposes of their undertaking to raise further money and that provision be made for the issue of redeemable preference shares or stock and debenture stock of the Company :

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And whereas plans and sections showing the lines situations and levels of the works by this Act authorised to be constructed and plans of the lands authorised to be taken acquired and held under the powers of this Act and books of reference to such plans respectively containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands respectively were duly deposited as follows (that is to say):—

As regards works and lands in the county of Essex and works and lands partly in that county and partly in the county of London with the clerk of the peace for the county of Essex;

As regards works and lands in the county of London and works and lands partly in that county and partly in the county of Essex with the clerk of the peace for the county of London;

As regards works and lands in the county of Suffolk with the clerk of the peace for the eastern division of that county and with the clerk of the peace for the western division of that county;

As regards lands in the county of Norfolk with the clerk of the peace for that county;

As regards lands in the Isle of Ely in the county of Cambridge with the clerk of the peace for the Isle of Ely and as regards such lands and works and other lands in the county of Cambridge with the clerk of the peace for the county of Cambridge;

and the said plans sections and books of reference respectively are in this Act referred to as “the deposited plans sections and books of reference”:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King’s most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited as the Great Eastern Railway Act 1915.

Incorporation of general enactments.

2. The following enactments (as far as they are applicable for the purposes of and are not inconsistent with or expressly

varied by this Act) are hereby incorporated with and shall be part of this Act (that is to say):— A.D. 1915.

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the several matters following (namely):—

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the Company against the shareholders;

The borrowing of money by the Company on mortgage or bond;

The conversion of the borrowed money into capital;

The consolidation of the shares into stock;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested;

Parts I. II. and III. of the Companies Clauses Act 1863 (as amended by subsequent Acts) relating respectively to cancellation and surrender of shares to additional capital and to debenture stock;

The Lands Clauses Acts;

The Railways Clauses Consolidation Act 1845; and

Parts I. and II. of the Railways Clauses Act 1863 relating respectively to construction of a railway and to extension of time.

3. In this Act—

The several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction;

The expression “the railway” means the railway by this Act authorised;

Interpreta-
tion.

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The expression "the widening" means the widening of the Colchester main line of the Company by this Act authorised ;

The expression "the railway works" means the railway the widening and the lines of rails by this Act authorised ; and

The expression "the Act of 1912" means the Great Eastern Railway Act 1912.

Interpretation of term "parish clerks" &c.

4. The expressions "parish clerks" and "clerks of the several parishes" in sections 7 8 and 9 of the Railways Clauses Consolidation Act 1845 shall as regards the administrative county of London mean the town clerks of the metropolitan boroughs.

Protection of gas and water mains of local authorities.

5. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and apparatus of any local authority and shall be construed as if "local authority" were mentioned in those sections in addition to "company or society" Provided that any penalties recovered under section 23 shall be appropriated to that fund of the local authority to which their revenues in respect of water or gas (as the case may be) are appropriated.

Power to execute works.

6. Subject to the provisions of this Act the Company may make execute and maintain in the lines or situations and within the limits of lateral deviation shown on the deposited plans and according to the levels shown (where such levels are shown) on the deposited sections the works described in this section with all proper and convenient bridges arches piers abutments walls piles embankments stations junctions rails sidings buildings approaches roads cofferdams warehouses cranes lifts machinery and other works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference as may be required for those purposes and for the purposes of reinstating any person whose property may be acquired by the Company.

The works hereinbefore referred to and authorised by this Act are the following (that is to say):—

(A) A railway 4 furlongs 6·20 chains or thereabouts in length wholly in the parish and borough of Chelmsford in the county of Essex commencing in

the Company's goods yard and terminating at a point on the Colchester main line of the Company immediately to the south-west of the bridge carrying the road leading from the London Road to All Saints Church Springfield over the said main line of the Company : A.D. 1915.

- (B) A widening in the county of Essex of the Colchester main line of the Company on its northern side commencing in the parish and urban district of Romford at a point on the said main line 237 yards or thereabouts measured in a westerly direction along the said main line from the west corner of the Company's Romford Junction signal-box and terminating in the parish of Hornchurch in the rural district of Romford at a point on the said main line 303 yards or thereabouts measured in a north-easterly direction along the said main line from the south-east corner of the Company's Romford Factory signal-box :
- (c) The laying down in the hamlet or parish of Mile End Old Town in the metropolitan borough of Stepney in the county of London of a line or lines of rails (No. 1) on the south side of the Colchester main line of the Company from a point situate 7 yards or thereabouts measured in a south-westerly direction from the south-west corner of the subway underneath the said main line east of the Globe Road and Devonshire Street Station of the Company to a point on the Company's premises 7 yards or thereabouts measured in an easterly direction from the south-east corner of the abutment of the bridge carrying the Company's said main line over Morpeth Street together with a bridge for carrying the said line or lines of rails over a portion of the northern side of Devonshire Street Mile End :
- (D) The laying down partly in the parish of Poplar Borough in the metropolitan borough of Poplar in the county of London and partly in the parish and county borough of West Ham in the county of Essex of a line or lines of rails (No. 2) on the south side of Carpenters Road near the point where that road crosses the River Lee from a point in the said parish

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of Poplar Borough on the west side of the River Lee to a point in the said parish and county borough of West Ham on the east side of the River Lee near the match works in the occupation of Messieurs George M. Judd and Brothers Limited together with a bridge for carrying the said line or lines of rails over the River Lee:

- (E) The laying down in the said parish and county borough of West Ham of a line or lines of rails (No. 3) on the north-west side of the Colchester main line of the Company from a point at or near the eastern end of the ropewalk adjoining Marshgate Works to a point on the north side of the City Mill river 17 yards or thereabouts from such river together with a bridge for carrying the said line or lines of rails over the City Mill river:
- (F) The laying down in the parish and urban district of Ilford in the county of Essex of a line or lines of rails (No. 4) immediately adjoining the north side of the Company's Colchester main line between the Company's sidings or premises on the west side of Goodmayes Road and the Company's sidings or premises on the east side of Goodmayes Road together with a bridge for carrying that road over the said line or lines of rails:
- (G) The laying down in the rural district of Billericay in the county of Essex partly in the parish of Hutton and partly in the parish of Ingrave of a line or lines of rails (No. 5) on the west side of the said Colchester main line between points measured respectively 44 yards north and south along the said main line from the public footpath crossing the said main line on the level at or near the southern boundary of the said parish of Hutton:
- (H) The laying down in the parish and county borough of Ipswich in the county of Suffolk (Eastern Division) of a line or lines of rails (No. 6) on the north-east side of the Norwich main line of the Company between the premises situate immediately on the north-west side of London Road and the premises situate immediately on the south-east side of London Road together with a bridge for carrying London Road over the said line or lines of rails:

- (1) A diversion in the county of Cambridge of the stream leading into the River Cam at Swan's Corner commencing at a point in the parish of Sawston in the rural district of Linton immediately west of the Company's Cambridge main line 270 yards or thereabouts measured along such main line in a northerly direction from the bridge carrying the said main line over the River Cam and terminating in the said parish of Sawston at a point immediately west of such main line 360 yards or thereabouts measured in a northerly direction along such main line from such bridge : A.D. 1915.

And on the completion of such diversion the Company may stop up so much of the said stream as lies between the commencement and termination of such diversion thereof.

7. In constructing the works hereinbefore described and authorised by this Act the Company may deviate laterally from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and may deviate vertically from the levels of the works as shown on the deposited sections to any extent not exceeding five feet upwards and ten feet downwards. Limits of deviation.

8. For the protection of the mayor aldermen and burgesses of the borough of Chelmsford (in this section referred to as "the corporation") the following provisions shall notwithstanding anything in this Act contained and unless otherwise agreed in writing between the corporation and the Company apply and have effect (that is to say):— For protection of mayor aldermen and burgesses of borough of Chelmsford.

- (1) The Company shall not in constructing the railway interfere with any road street sewer drain pipe main cable apparatus or work belonging to the corporation until they have submitted to the engineer of the corporation plans and sections of any works proposed to be carried out by them so far as the same may interfere with or affect any such road street sewer drain pipe main cable apparatus or work and such plans and sections shall have been approved by the said engineer or in case of difference between him and the Company by an arbitrator to be appointed as hereinafter provided Provided always that if such engineer shall not within twenty-one days after any such plans and sections shall

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have been submitted to him signify in writing his approval or disapproval thereof he shall be deemed to have approved the same :

- (2) The Company shall in constructing the railway and at all times thereafter execute such works as the corporation may reasonably require for the maintenance and protection of the sewer in or under the lands numbered on the deposited plans 5 in the parish and borough of Chelmsford and shall also afford to the corporation reasonable facilities for obtaining access thereto :
- (3) The Company shall construct the parapets of the lengthened portions of the bridges carrying Arbour Lane and Stump Lane over the railway of a not less height than 4 feet 6 inches and the Company shall maintain the carriageways and footpaths over such lengthened portions of the said bridges :
- (4) If any difference shall arise between the Company and the corporation in respect of any matters under this section such difference shall unless otherwise agreed be settled by arbitration the arbitrator to be appointed failing agreement on the application of either party after notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protection of Romford Urban District Council.

9. In connection with the construction by the Company of the widening so far as the same will be situate in the parish and urban district of Romford the following provisions shall have effect for the protection of the Romford Urban District Council (in this section referred to as "the council") unless otherwise agreed in writing between the Company and the council :—

- (1) The subway by which the footway known as Nursery Walk is carried under the existing railway of the Company shall not be lengthened or extended :
- (2)—(A) The widening shall be carried over Waterloo Road by means of a girder bridge with a span of 30 feet and over South Street by means of a girder bridge with a span of 40 feet :
- (B) If the council shall require the Company to reconstruct the bridges carrying the existing railway of

the Company over Waterloo Road and South Street or either of such bridges in the manner hereinafter mentioned and shall give to the Company notice in writing to that effect within fourteen days after receiving notice in writing from the Company of their intention to proceed with the construction of the widening the Company shall reconstruct as girder bridges the said bridges carrying the said existing railway over Waterloo Road and South Street or such one of such bridges as may be specified in the notice given by the council to the Company in manner following (that is to say) as regards the bridge over Waterloo Road with a span of 30 feet and as regards the bridge over South Street with a span of 40 feet and the council shall afford to the Company all reasonable facilities for the purpose of enabling such reconstruction to be carried out: A.D. 1915.

(c) Upon the completion of the reconstructed bridges carrying the said existing railway over Waterloo Road and South Street or such one of such bridges as by the said notice the Company may be required to reconstruct as aforesaid the council shall pay to the Company within two calendar months after demand a moiety of the additional cost to which the Company may be put by reason of such reconstruction such cost as aforesaid to be certified by the principal engineer of the Company whose certificate shall be conclusive:

(d) Any expenses incurred by the council under this subsection may be defrayed by them out of the district fund and general district rate of the urban district of Romford in the same manner and to the same extent as if such expenses were expenses incurred in the execution of the Public Health Act 1875 and the council may with the sanction of the Local Government Board borrow any moneys necessary for defraying such expenses:

(3) If the Company shall stop up the whole or any portion of the footpath numbered 5 on the deposited plans in the parish of Romford they shall substitute for such footpath or so much thereof as they shall so stop up another footpath of like width and as nearly

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as possible parallel to the site of the footpath or portion of footpath so stopped up:

- (4) If the Company interfere with the footbridge across the railway of the Company which is situate to the eastward of and near to Junction Road or the footpath connecting such footbridge with Junction Road they shall extend the footbridge over the widening such extension of the said footbridge being of the same width as the existing footbridge and shall also construct a new footpath to connect the extended footbridge at its northern end with the footpath leading to Junction Road and numbered 18 on the deposited plans in the parish of Romford such new footpath to be of the same width as the portion of the existing footpath for which it will be substituted If the Company shall stop up either wholly or partially the said footpath leading to Junction Road they shall provide a suitable footpath of equal dimensions to the footpath or the portion of the same so stopped up by them:
- (5) The diverted footpath to be constructed by the Company on the property numbered 24 on the deposited plans in the parish of Romford shall be constructed in a good and workmanlike manner in the position shown on the deposited plans and shall be of a similar width (but in any event of a width of not less than five feet) to the portion of footpath for which it will be in substitution:
- (6) The Company shall not extend the existing bridges carrying Balgores Lane and Old Brentwood Road over the railway of the Company and numbered respectively 25 and 26 on the deposited plans in the parish of Romford or the parapet walls thereof nor permanently alter the width of the roadways thereon or the surface of such roadways:
- (7) The culvert under the existing railway at or near the boundary between the parishes of Romford and Hornchurch shall be extended under the widening and such extended culvert shall be of similar dimensions and construction to the existing culvert under the existing railway:

(8)—(A) The Company shall not interfere with any sewers or drains of the council or any ventilators thereto until they have submitted to the engineer of the council a plan and section of the works proposed to be carried out by them so far as the same may affect any such sewers drains or ventilators and such plan and section shall have been approved by the said engineer or in case of difference between him and the Company by an arbitrator to be appointed as hereinafter provided Provided always that if such engineer shall not within twenty-one days after such plan and section shall have been submitted to him signify in writing his approval or disapproval thereof he shall be deemed to have approved the same: A.D. 1915.

(B) The Company shall execute such works as the council may reasonably require for the maintenance and protection of the said sewers drains and ventilators and shall afford to the council reasonable facilities for obtaining access thereto:

(9) Nothing in the section of this Act the marginal note whereof is "Company not bound to maintain surface of roads &c. unless level permanently altered" shall be deemed to exempt the Company from liability to maintain the surface of any portion of any road or public highway in the urban district of Romford which they are now liable to maintain:

(10) If any difference shall arise between the Company and the council or the engineer of the council in respect of any matter under the provisions of this section such difference shall unless otherwise agreed be referred to and settled by an arbitrator to be appointed failing agreement on the application of either party after notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

10. The provisions of sections 18 to 21 of the Railways Clauses Consolidation Act 1845 shall extend and apply to any electric mains of the Electric Supply Corporation Limited which may be interfered with under the powers of this Act as if those mains were water or gas pipes within the meaning of the said provisions. For protection of Electric Supply Corporation Limited.

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For protec-
tion of Gas
Light and
Coke Com-
pany.

11. For the protection of the Gas Light and Coke Company (in this section referred to as "the gas company") the following provisions shall unless otherwise agreed in writing between the gas company and the Company have effect with respect to the construction by the Company of the line or lines of rails (No. 4) by this Act authorised so far as the same affect any mains pipes apparatus or works (in this section referred to as "apparatus") of the gas company (that is to say):—

- (1) Not less than one month before commencing to interfere with any portion of Goodmayes Road in the parish and urban district of Ilford in or under which any apparatus of the gas company is situate the Company shall deliver to the gas company a plan section and description of the works proposed so far as the same may interfere with any such apparatus describing the proposed manner of constructing the same and the position (so far as may be known to the Company) of any apparatus of the gas company and the extent (if any) to which it is proposed to interfere with the same:
- (2) The gas company may at any time within twenty-one days of the receipt of such plan section and description by notice in writing intimate to the Company their disapproval of the manner of executing such works so far as they involve interference with the apparatus of the gas company and may make any reasonable requirement with respect to the said plan section and description and in particular they may require the Company to remove raise sink or otherwise alter the position of any apparatus and support the same and to substitute temporarily or otherwise other apparatus in such manner as may be specified by the gas company and to lay or place under any apparatus brick piers in cement concrete or other like substance:
- (3) The Company shall construct such works as aforesaid in accordance with the said plan section and description as approved by the gas company or settled by arbitration as hereinafter provided and in the event of such plan section and description so delivered to the gas company as aforesaid not being objected to within twenty-one days after delivery thereof the

said works may and shall be executed in accordance therewith: A.D. 1915.

- (4) All works to be executed under this section in connection with any apparatus of the gas company shall except as hereinafter expressly provided be so executed by and at the expense of the Company but to the reasonable satisfaction and under the supervision of the engineer of the gas company unless the gas company refuse or neglect to give such supervision and the costs charges and expenses of such supervision shall on demand be paid by the Company to the gas company:
- (5) The Company shall not raise sink or otherwise alter the position of any apparatus of the gas company or alter the level of any portion of Goodmayes Road in which any such apparatus is situate so as to leave a covering of less depth than the existing depth over such apparatus or two feet six inches whichever may be the less unless the Company shall in such case protect such apparatus from frost or injury by artificial covering to the reasonable satisfaction of the engineer of the gas company or more than five feet unless the Company in such case provide special means of access to the same to the reasonable satisfaction of the engineer of the gas company:
- (6) If within twenty-one days after the receipt by the gas company of the plan section and description of the said works the gas company shall give notice to the Company of their intention themselves to lay down any substituted apparatus or to execute any other works to or in connection with any apparatus of the gas company as provided by this section it shall be lawful for the gas company instead of the Company to lay down such apparatus or execute such works and the reasonable and proper costs incurred by them in so doing shall on demand be repaid to the gas company by the Company:
- (7) If any loss of gas shall be sustained by the gas company by reason of any act or omission of the Company or of any of their contractors agents workmen or servants or any person in the employ of them or any of them the Company shall pay to

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the gas company for the use and benefit of the gas company the value of any gas so lost as aforesaid:

- (8) The gas company may if they deem fit employ a reasonable number of watchmen or inspectors to watch the works whereby any apparatus of the gas company will be interfered with or affected during the construction of the works by this Act authorised or during the provision of substituted apparatus or the construction of any works required by this section and the reasonable expense thereof shall be borne by the Company and be paid by them upon demand to the gas company:
- (9) The reasonable expenses of all repairs or renewals of any apparatus of the gas company or any works in connection therewith which may be rendered necessary by reason of any subsidence resulting from the works of the Company whether during the construction of such works or at any time within twelve months thereafter shall be borne by the Company and paid by them on demand to the gas company:
- (10) Notwithstanding the stopping up temporarily of any portion of Goodmayes Road in which any apparatus of the gas company shall be laid the gas company their engineers workmen and others in their employ shall at all times have full free and uninterrupted rights of access to all or any such apparatus and shall be at liberty to do all such works in and upon such road as may be necessary for inspecting repairing maintaining removing replacing or extending such apparatus:
- (11) Save in respect of matters which may be expressly provided for by this section the provisions of this section shall be in addition to and not in substitution for or derogation of any of the provisions of this Act or of any Act incorporated therewith to the benefit of which the gas company would have been entitled if this section had not been enacted:
- (12) If any difference shall arise between the gas company and the Company with respect to any matters under this section or concerning the said plan section and description the matter in difference shall be referred to and settled by an arbitrator to be agreed upon or

failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such settlement by arbitration.

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12. The Company shall before using for traffic the line or lines of rails (No. 6) by this Act authorised erect and thereafter maintain for a distance of one hundred and eight yards measured along the south-west side of Paul's Road between the points marked A and B on a plan dated eighteenth February one thousand nine hundred and fifteen and signed by Horace Wilmer on behalf of the Company and William Bantoft on behalf of the mayor aldermen and burgesses of the borough of Ipswich a brick wall or buildings not less than eight feet in height above the level of Paul's Road and the north-east side of such wall or buildings shall not at any time be used as a bill-posting station nor for the display of any placards posters or advertisements and no advertisement hoarding shall be erected between the said wall or buildings and Paul's Road.

For protection of Ipswich Corporation.

13. For the protection of the Ipswich Gas Light Company (in this section referred to as "the gas company") the following provisions shall unless otherwise agreed in writing between the gas company and the Company have effect with respect to the construction by the Company of the line or lines of rails (No. 6) by this Act authorised so far as the same affect any mains pipes apparatus or works (in this section referred to as "apparatus") of the gas company (that is to say):—

For protection of Ipswich Gas Light Company.

- (1) The Company shall give to the gas company not less than seven days' notice before interfering with any part of London Road in the borough of Ipswich in or under which any apparatus of the gas company is situate:
- (2) The Company shall not raise sink or otherwise alter the position of any apparatus of the gas company or alter the level of any portion of London Road in which any such apparatus is situate so as to leave a covering of less depth than two feet unless the Company shall protect such apparatus from frost or injury by artificial covering to the reasonable satisfaction of the engineer of the gas company:
- (3) If within five days after the receipt of such notice as aforesaid the gas company shall give notice to the

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Company of their intention themselves to lay down any substituted apparatus or to execute any other works to or in connection with any apparatus of the gas company as provided by the Railways Clauses Consolidation Act 1845 it shall be lawful for the gas company instead of the Company to lay down such apparatus or execute such works and the reasonable and proper costs incurred by them in so doing shall on demand be repaid to the gas company by the Company :

- (4) If any loss of gas shall be sustained by the gas company by reason of any act or omission of the Company or of any of their contractors agents workmen or servants or any person in the employ of them or any of them the Company shall pay to the gas company for the use and benefit of the gas company the value of any gas so lost as aforesaid :
- (5) The reasonable expenses of all repairs or renewals of any apparatus of the gas company or any works in connection therewith which may be rendered necessary by reason of any subsidence resulting from the works of the Company whether during the construction of such works or at any time within twelve months thereafter shall be borne by the Company and paid by them on demand to the gas company :
- (6) Save in respect of matters which may be expressly provided for by this section the provisions of this section shall be in addition to and not in substitution for or derogation of any of the provisions of this Act or of any Act incorporated therewith to the benefit of which the gas company would have been entitled if this section had not been enacted :
- (7) If any difference shall arise between the gas company and the Company with respect to any matters under this section the matter in difference shall be referred to and settled by an arbitrator to be agreed upon or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such settlement by arbitration.

14. The Company may make the roadway over the bridges by which the following roads will be carried over the widening of such width between the fences thereof as the Company think fit not being less than the respective widths hereinafter mentioned in connection therewith respectively (that is to say):—

A.D. 1915.
Widths of
roadways
over bridges.

No. on deposited Plans.	Area.	Description of Roadway.	Width of Roadway.	
			Ft.	In.
25	Parish and urban district of Romford	Public	20	0
26	Parish and urban district of Romford	Public	20	9

15. The Company may divert the public footpath numbered on the deposited plans relating to the railway 9 in the parish and borough of Chelmsford in the manner shown upon the deposited plans and subject to the provisions of this Act may stop up and cause to be discontinued as a footpath so much of the existing footpath as will be rendered unnecessary by the new portion of footpath so shown on the said plans.

Power to
divert
footpath.

16. Notwithstanding anything contained in section 46 of the Railways Clauses Consolidation Act 1845 the Company shall not be liable to maintain the surface of any road or public highway which shall be carried over any of the railway works by a bridge or bridges or the immediate approaches thereto except so far as the level of such road or public highway is permanently altered.

Company
not bound to
maintain
surface of
roads &c.
unless level
permanently
altered.

17. Subject to the provisions of this Act the railway works shall in respect of tolls rates and charges and in all other respects be deemed to form part of the undertaking of the Company.

Tolls on
railway
works.

18. The Company shall not be required to run passenger trains on the railway works other than the widening.

Company not re-
quired to carry
passengers on rail-
way works other
than widening.

19. If the railway is not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the railway or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Period for
completion
of railway.

20. If the Company fail within the period limited by this Act to complete the railway the Company shall be liable to a

Penalty im-
posed unless
railway

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opened
within time
limited.

penalty of fifty pounds a day for every day after the expiration of the period so limited until the railway is completed and opened for public traffic or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of the railway and the said penalty may be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the same manner as the penalty provided in section 3 of the Railway and Canal Traffic Act 1854 And every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the Paymaster-General for and on behalf of the Supreme Court in the bank specified in such warrant or order and shall not be paid thereout except as hereinafter provided But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Company were prevented from completing or opening the railway by unforeseen accident or circumstances beyond their control Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control.

Application
of penalty.

21. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the railway or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit And if no such compensation is payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent or the railway or any part thereof has been abandoned be paid or

transferred to such receiver or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or retransferred to the Company. A.D. 1915.

22. The Company may divert in the manner shown on the deposited plans the following portions of footpaths (that is to say) :— Footpath
diversions.

(A) So much of the footpath in the parish of Woodford St. Mary and urban district of Woodford in the county of Essex as crosses on the level the Company's Loughton Epping and Ongar Branch Railway immediately to the south of Woodford Station such diverted footpath to be carried over the said railway by means of a footbridge;

(B) So much of the footpath in the parish and county borough of Southend-on-Sea in the county of Essex leading from Rochford Road to Prittlewell as lies between that road near the point where the same crosses the Company's Southend line and the point on the western boundary of the said Southend line where such footpath crosses the same on the level Provided that the portion of the said footpath so diverted shall be constructed by the Company of a width of at least five feet throughout;

(C) So much of the footpath in the parish and urban district of Braintree in the county of Essex as crosses on the level the Company's sidings at Braintree Goods Station;

(D) So much of the footpath in the parish of Darsham in the rural district of Blything in the county of Suffolk (Eastern Division) as crosses on the level the Company's East Suffolk line at or near Darsham Station and as lies to the west of such line; and

(E) So much of the footpath in the parish and urban district of Leiston-cum-Sizewell in the county of Suffolk (Eastern Division) leading from Saxmundham Road to Buckleswood Road as crosses the Company's Aldeburgh Branch Railway such diverted footpath to be carried over the said railway by means of a footbridge:

And the Company may in constructing such diversions of portions of footpaths deviate laterally from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of

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Provided that nothing in this section contained shall extend to prevent the exercise by the Metropolitan Water Board or the Gas Light and Coke Company respectively of the powers conferred upon them by any Act of Parliament and exerciseable by them at the time of the passing of this Act for the laying down of water and gas pipes in or under the site of the portion of footpath (A) in this section referred to as the same exists at the date of the passing of this Act.

Power to
Company to
acquire addi-
tional lands.

23. The Company in addition to the other lands which they are by this Act authorised to acquire may enter upon and take compulsorily or by agreement and may appropriate and use for the purposes of laying down additional sidings and providing and extending stations sidings engine sheds workshops coal mineral goods and other depôts warehouses yards buildings wharves and other accommodation and for providing access thereto and to their railways and otherwise for any of the purposes of their undertaking all or any of the lands hereinafter described and delineated on the deposited plans and described in the deposited books of reference and any estates or interests in any such lands and may hold and use for all or any of the above-mentioned purposes such of the said lands as have already been purchased or acquired by them and the purchase of such last-mentioned lands and the expenditure of money by the Company in connection therewith are hereby sanctioned and confirmed Provided that the said lands so already purchased or acquired by the Company shall for the purposes of section 3 of the Housing of the Working Classes Act 1903 be deemed to have been acquired under the powers of this section The lands above referred to and by this section authorised to be entered upon and taken appropriated and used are as follows:—

In the county of London—

(A) A triangular strip of land in the parish of Woolwich in the metropolitan borough of Woolwich situate

at the north-east corner of the property abutting on Store Road known as the Victoria Ale Stores :

(B) Lands and buildings in the hamlet or parish of Mile End Old Town in the metropolitan borough of Stepney (viz.) :—

(1) A piece of land forming the north-eastern corner or extremity of the public street known as Devonshire Street ;

and the Company may on the completion of the purchase of the last-mentioned piece of land stop up and discontinue for traffic of every description such portion of Devonshire Street ;

(2) House and premises known as 45 Moody Street and yards and stables abutting on Moody Street and the Company's premises and immediately opposite 45 Moody Street ;

and the Company may on the completion of the purchase of the said house and premises and yards and stables stop up and discontinue for traffic of every description the northern end of Moody Street for a distance of ten yards measured from the Company's boundary fence ;

(3) Houses and premises known respectively as 50 and 52 Bradwell Street :

(c) A piece of land in the parish of Poplar Borough in the metropolitan borough of Poplar situate on the west side of the River Lee near the point of junction of such river with the City Mill river and abutting on the south side of Carpenters Road :

Provided that the erection of any buildings or structures on the said land and abutting upon or approached from the private roadway forming the western boundary of the said land shall not be or be deemed to be the conversion or adaptation of such private roadway into a street within the meaning of the London Building Acts 1894 to 1909 :

In the county of Essex—

(A) In the parish and county borough of West Ham—

(1) Lands and buildings abutting on the north-western side of the Company's Colchester main line and bounded on the south-west by the City Mill river and on the north-east by the Waterworks river and on the west by the River Lee together with the bridge over the Waterworks

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river and a strip of land, or roadway leading from such lands to Warton Road;

(2) Lands and buildings docks wharves and premises situate between Bow Creek and the Company's Woolwich Branch Railway and sidings and known as the Thames Ironworks together with portions of the bed or foreshore of the River Thames and Bow Creek respectively and adjoining or forming part of such premises;

(3) A piece of land situate between the road leading from Temple Mills Lane to the Waterworks river and the Company's High Meads Loop Railway and adjoining the Company's boundary fence on the north-west side of the said railway:

(B) In the parish and urban district of Ilford—

(1) A piece of land situate on the north side of the Company's Colchester main line and being a portion of the property numbered on the Ordnance map scale $\frac{1}{2500}$ (special edition 1911) 490 in the said parish and the footpath running along the western boundary of such land numbered 490A on the said Ordnance map leading from High Road to Ley Street;

and the Company may on the completion of the purchase of the last-mentioned piece of land and footpath stop up and discontinue for traffic of every description so much of the said footpath as extends along the western boundary of such land. Provided that notwithstanding the stopping up of the said footpath the Postmaster-General may if he so desires (without derogation from any other right vested in him) remove from the said footpath and the last-mentioned piece of land any telegraphic line of the Postmaster-General on or under the same and the Company shall pay to the Postmaster-General the expenses incurred by him of and incidental to such removal and the substitution of a telegraphic line in such other place as the Postmaster-General may require;

(2) Two pieces of land abutting on the east side of Goodmayes Road between the Company's

Goodmayes Station and High Road and the building erected on the northernmost of the said two pieces of land; A.D. 1915.

(3) A strip of land being a portion of the High Road Ilford immediately adjoining the south side of the Company's Seven Kings Station;

and the Company may on the completion of the purchase of the last-mentioned strip of land stop up and discontinue for traffic of every description such portion of the said High Road Ilford:

(c) In the parish and urban district of Loughton—

(1) A strip of land abutting on the east side of the Company's Loughton Epping and Ongar Branch Railway and forming part of the property numbered on the Ordnance map scale $\frac{1}{2500}$ (2nd edition 1896) 41 in such parish;

(2) Lands situate between Station Road and Meadow Road:

(d) A strip of land in the parish of Chigwell in the rural district of Epping adjoining the southern boundary of the Company's property and forming a portion of the property numbered on the Ordnance map scale $\frac{1}{2500}$ (2nd edition 1896) 379 in such parish:

(e) In the parish of Hornchurch in the rural district of Romford—

(1) A strip of land situate on the south side of the Company's Colchester main line and forming a portion of the property numbered on the Ordnance map scale $\frac{1}{2500}$ (2nd edition 1896) 68 in such parish;

(2) A piece of land situate on the south side of Station Road between that road and the Harold Wood Station of the Company and extending in a north-easterly direction along the north-western boundary of such station:

(f) A piece of land in the parish of Ramsden Bellhouse in the rural district of Billericay adjoining the southern boundary of the Company's Southend line forming a portion of the property numbered

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on the Ordnance map scale $\frac{1}{2500}$ (2nd edition 1896) 233 in such parish:

- (G) A strip of land partly in the parish of North Benfleet in the rural district of Billericay and partly in the parish of Rayleigh in the rural district of Rochford abutting on the south side of the Company's Southend line and forming portions of the properties numbered respectively on the Ordnance map scale $\frac{1}{2500}$ (2nd edition 1896) 48 in the parish of North Benfleet and 206 and 179 in the parish of Rayleigh:
- (H) A piece of land in the parish of Rayleigh in the rural district of Rochford situate on the south side of the Company's Southend line forming a portion of the property numbered on the Ordnance map scale $\frac{1}{2500}$ (2nd edition 1896) 197 in such parish:
- (I) Two pieces of land in the parish of Hockley in the said rural district of Rochford situate on the north-west side of the Company's Southend line and respectively forming portions of the properties numbered on the Ordnance map scale $\frac{1}{2500}$ (2nd edition 1896) 582 and 344 in such parish:
- (J) Lands and buildings in the parish and county borough of Southend-on-Sea situate on the east side of and adjoining the Company's Southend-on-Sea Station and Southend line and forming portions of the properties numbered on the Ordnance map scale $\frac{1}{2500}$ (2nd edition 1897) 106 and 276A in such parish;

and the Company may divert in the manner shown on the deposited plans so much of the footpath leading from Albion Road to East Street Prittlewell as crosses such last-mentioned lands and may stop up and discontinue for traffic of every description such portion of footpath Provided that the portion of the said footpath so diverted shall be constructed by the Company of a width of at least five feet throughout:

- (K) In the parish and borough of Chelmsford—
 - (1) Land situate immediately to the north of and adjoining the existing goods yard of the

Company and forming part of the property numbered on the Ordnance map scale $\frac{1}{2500}$ (2nd edition 1897) 76 in such parish; A.D. 1915.

(2) Land abutting on the north side of the Company's Colchester main line and being a portion of the property numbered on the Ordnance map scale $\frac{1}{2500}$ (2nd edition 1897) 79 in such parish:

(L) A piece of land in the parish of Springfield in the rural district of Chelmsford abutting on the north side of the Company's Colchester main line and being a portion of the property numbered on the Ordnance map scale $\frac{1}{2500}$ (2nd edition 1897) 78 in such parish:

(M) In the parish of Kelvedon in the rural district of Braintree—

(1) A piece of land adjoining the north-west boundary of the Kelvedon Station of the Company and being portions of the properties numbered on the Ordnance map scale $\frac{1}{2500}$ (2nd edition 1897) 255 269 and 262 in such parish;

and the Company may divert in the manner shown on the deposited plans so much of the public footpath leading from Rolleylane Bridge to the road leading from Kelvedon to Coggeshall as crosses such last-mentioned piece of land and may stop up and discontinue for traffic of every description such portion of footpath and also the portion of the public footpath leading from such last-mentioned footpath in a north-westerly direction across the aforesaid property numbered 269 and the Company may construct in the manner shown on the deposited plans a new footpath across such property by an extension of the existing footbridge over the Company's main line south-west of Kelvedon Station;

(2) A piece of land abutting on the west side of the aforesaid road leading from Kelvedon to Coggeshall and forming a portion of the aforesaid property numbered 269 in the said parish:

(N) Two strips of land situate in the parish of Tolleshunt Knights in the rural district of Maldon abutting

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respectively on the northern and southern sides of the Company's Kelvedon and Tollesbury Light Railway and forming portions of the properties numbered on the Ordnance map scale $\frac{1}{2500}$ (2nd edition 1897) 335 and 339 in such parish:

- (o) A strip of land in the parish of Bradfield in the rural district of Tendring situate on the south side of the Company's Harwich Branch Railway and forming a portion of the property numbered on the Ordnance map scale $\frac{1}{2500}$ (2nd edition 1897) 282 in such parish:
- (p) Lands and buildings partly in the parish of St. Nicholas Harwich and partly in the parish of Dovercourt both in the borough of Harwich abutting on the south-east side of the Company's Harwich Branch Railway near Grafton Road and partially abutting on such road:
- (q) A piece of land in the parish of Thaxted in the rural district of Dunmow situate on the south-east side of the Thaxted Station of the Company forming a portion of the property numbered on the Ordnance map scale $\frac{1}{2500}$ (2nd edition 1897) 290 in such parish:
- (r) A strip of land in the parish of Newport in the rural district of Saffron Walden abutting on the east side of the Company's Cambridge main line and forming a portion of the property numbered on the Ordnance map scale $\frac{1}{2500}$ (2nd edition 1897) 183 in such parish:

In the county of Suffolk (Eastern Division)—

(A) In the parish and county borough of Ipswich—

(1) Lands abutting on the north-east side of the Company's Norwich main line and situate immediately to the south-east of and adjoining London Road;

(2) A piece of land abutting on the north-east side of the Company's Norwich main line and situate between London Road and Hadleigh Road;

(3) Land and buildings abutting on the south-west side of the Company's Felixstowe Railway and situate between that railway and Felixstowe Road and being the property known as 229 Felixstowe Road;

- (4) A strip of land situate between the properties known as 11 and 15 Gippeswyk Road:
- (B) A triangular piece of land in the parish and urban district of Felixstowe abutting on the Company's property immediately to the east of the engine shed at Felixstowe Beach Station and being part of the property numbered on the Ordnance map scale $\frac{1}{2500}$ (2nd edition 1903) 274 in such parish:
- (c) A triangular piece of land in the parish of Bentley in the rural district of Samford situate between the Colchester main line and the Hadleigh Branch Railway of the Company and being the properties numbered on the Ordnance map scale $\frac{1}{2500}$ (2nd edition 1904) 211 212 and 213 in such parish:
- (D) Two strips of land in the parish of Great Blakenham in the rural district of Bosmere and Claydon respectively abutting on the eastern and western sides of the Company's Norwich main line between Claydon Station and the River Gipping:
- (E) In the parish of Campsea Ash in the rural district of Plomesgate—
- (1) A strip of land abutting on the south-eastern side of the Company's East Suffolk line immediately to the south-west of Wickham Market Station;
- (2) A piece of land on the north-west side of Wickham Market Station of the Company being part of the property numbered on the Ordnance map scale $\frac{1}{2500}$ (2nd edition 1904) 358 in such parish;
- and the Company may divert in the manner shown on the deposited plans so much of the footpath leading from Abbey Mills to Campsea Ash as crosses such last-mentioned piece of land and may stop up and discontinue for traffic of every description such portion of footpath:
- (F) A strip of land in the parish of Stowupland in the rural district of East Stow abutting on the south-west side of the down refuge sidings of the Company's Norwich main line south of Stowmarket Station:

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(G) A strip of land in the parish of Darsham in the rural district of Blything partly abutting on the Company's East Suffolk line at Darsham Station being part of the property numbered on the Ordnance map scale $\frac{1}{2500}$ (1884 edition) 136 in such parish:

(H) In the parish and borough of Lowestoft—

(1) A strip of land on the north side of the Company's Reedham and Lowestoft Branch Railway being part of the property numbered on the Ordnance map scale $\frac{1}{2500}$ (2nd edition 1905) 208 in such parish;

(2) A triangular piece of land situate between the last-mentioned branch railway and the railway of the Norfolk and Suffolk Joint Railways Committee at or near the junction of such railways;

(3) Lands and buildings being the property numbered on the last-mentioned Ordnance map 205 in such parish and parts of the properties numbered on the said map 200 and 203 in the said parish:

In the county of Suffolk (Western Division)—

A piece of land in the parish and urban district of Hadleigh adjoining the south-west side of the Hadleigh Station of the Company;

and the Company may divert in the manner shown on the deposited plans so much of the footpath in the said parish and urban district of Hadleigh abutting on the south-west side of the said Hadleigh Station as lies between a point 43 yards or thereabouts north-west of the signal box at Hadleigh Station and Station Road and may stop up and discontinue for traffic of every description such portion of footpath:

In the county of Norfolk—

(A) A piece of land in the parish of Ditchingham in the rural district of Loddon and Clavering abutting on the north side of the Company's Waveney Valley line at Ditchingham Station:

(B) Land and buildings in the parish of Reedham in the rural district of Blofield abutting on the south side of the Norwich Reedham and Yarmouth Branch Railway of the Company being part of

the properties numbered on the Ordnance map A.D. 1915.
scale $\frac{1}{2500}$ (2nd edition 1905) 319 and 320 in such
parish : —

- (c) A triangular strip of land in the parish of Outwell (Norfolk) in the rural district of Marshland abutting on the east side of the Company's Outwell goods yard :

In the county of Cambridge—

- (A) A strip of land in the parish of Cambridge Without in the borough of Cambridge abutting on the east side of the Company's Cambridge main line between Cambridge Station and Long Road :
- (B) A strip of land in the parish of Whittlesford in the rural district of Linton situate on the east side of the Company's Cambridge main line immediately north of the goods shed at Whittlesford Station :

In the Isle of Ely in the county of Cambridge—

- (A) Lands in the parish and urban district of March situate to the north of the Company's goods yard at March Station and being the properties numbered respectively on the Ordnance map scale $\frac{1}{2500}$ (2nd edition 1902) 799 and 800 in such parish and a portion of the property numbered on the said Ordnance map 618 in such parish :
- (B) Lands in the parish of Ely Trinity in the urban district of Ely—

(1) Two pieces of land abutting on the north-west side of the Company's Cambridge main line north of Ely Station and being portions of the properties numbered on the Ordnance map scale $\frac{1}{2500}$ (2nd edition 1902) 155 146 and 147 in such parish ;

(2) Lands situate on the south-east side of the Company's Cambridge main line lying to the north-east of Ely Station and being the property numbered on the said Ordnance map 148 in such parish and a portion of the property numbered on the said Ordnance map 149 in such parish.

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For protec-
tion of Lon-
don County
Council.

24. The following provisions shall unless otherwise agreed have effect for the protection of the London County Council (hereinafter in this section called "the council") (that is to say):—

- (1) Notwithstanding anything contained in this Act or shown on the deposited plans it shall not be lawful for the Company except in the case of streets or parts of streets by this Act authorised to be stopped up to encroach upon any part of the surface of any street or footway in the administrative county of London (in this section called "the county") or without the consent of the council to erect any building beyond the general line of building in any street:
- (2) Nothing in this Act contained shall exempt the Company from the provisions of the London Building Acts 1894 to 1909 or any Act amending the same and any byelaws and regulations in force thereunder but the Company shall be entitled to the benefit of any special exemptions in favour of railway companies in the said Acts or in any such byelaws or regulations:
- (3) The Company shall not where any house or building in the county has been wholly or in part demolished by them leave any adjoining structure or any portion of a partly demolished structure in an unsightly condition for a longer period than is reasonably necessary:
- (4) The Company shall not affix or exhibit or permit to be affixed or exhibited upon any part of the works authorised by this Act or upon any building or hoarding (so far as such works are or any such building or hoarding is in the county) and whether during or after the construction of the railway works within view of any public street in the county any placards or advertisements except such as have been approved by the council and if any such placard or advertisement is affixed or exhibited without such approval the council and their authorised officers may remove the same but this provision shall not prevent the Company from exhibiting on the outside of any station placards giving information to the public as to the traffic of the Company:
- (5) The bridge and works for carrying the line or lines of rails (No. 1) over Devonshire Street and Morpeth Street

shall be constructed as a girder bridge with a clear headway throughout above the existing surface of the said streets of not less than 15 feet 4 inches and a clear span measured on the centre line of not less than 123 feet and so as not to reduce the existing width of those streets and no part of the abutments or supports of such bridge and works shall be erected on any part of the surface of those streets:

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- (6) The said bridge and works shall be of a reasonably ornamental character and design and shall so far as reasonably practicable be made and maintained so as to prevent the dripping of water therefrom on any part of the said streets or footways thereof and so as to deaden so far as is reasonably practicable the sound of engines carriages and traffic passing over them and the parapet of such bridge and works shall be carried up to the same height above rail level as the parapet of the existing girder bridge carrying the Company's railway over Morpeth Street:
- (7) The Company shall not execute or commence to execute the construction of the said bridge or works until they have given to the council twenty-eight days' previous notice in writing of their intention to commence the same by leaving such notice at the offices of the council with plans elevations sections and all other necessary particulars of the works and until the council have signified their approval of the same unless the council fail to signify such approval or their disapproval or other directions within twenty-eight days after service of the said notice and delivery of the said plans elevations sections and other particulars as aforesaid and the Company shall comply with and conform to all reasonable directions and regulations of the council in the execution and subsequent maintenance of the said bridge and works and shall save harmless the council against all and every expense to be occasioned thereby and all such works shall be done to the reasonable satisfaction of the council at the reasonable costs charges and expenses in all respects of the Company and all reasonable costs charges and expenses which the council may be put to by reason of the works of the

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Company whether in the execution of the works the preparation or examination of plans and designs superintendence or otherwise shall be paid to the council by the Company on demand:

- (8) The Company shall not commence the construction or alteration of the line or lines of rails (No. 3) if and so far as the same shall pass by the side of or otherwise affect the northern main outfall sewer of the council until they shall have given to the council twenty-eight days' notice in writing of their intention to commence or alter the same by leaving such notice at the office of the council with plans sections and other necessary particulars of the construction of the said works or of any alteration therein nor until the council shall have signified their approval of the same unless the council fail to signify such approval or their disapproval or other reasonable directions within twenty-eight days after service of the said notice and delivery of the said plans sections and particulars in which event the Company may proceed with the said works or the alterations therein according to the said plans sections and particulars and the Company shall comply with and conform to all reasonable directions of the council in the execution of the said works and shall provide by new altered or substituted works in such manner as the council shall reasonably require for the proper protection of and for preventing injury or impediment to the said sewer by reason of the intended works or any part thereof and shall save harmless the council against all expenses to be occasioned thereby and all such works shall be done by or under the direction superintendence and control of the council at the costs charges and expenses in all respects of the Company and all reasonable costs charges and expenses which the council may be put to by reason of the works of the Company whether in the execution of the works the preparation or examination of plans and designs superintendence or otherwise shall be paid to the council by the Company on demand and when any new altered or substituted works or any works of defence connected therewith are completed by or at the costs charges or expenses of

the Company under the provisions of this Act the same shall thereafter form part of the council's main drainage system: A.D. 1915.

- (9) In constructing the line or lines of rails (No. 3) over the lands coloured yellow on the plan signed in duplicate by Horace Wilmer on behalf of the Company and George William Humphreys on behalf of the council the Company shall construct the same either on an embankment or at the Company's option by means of girders over such lands with a clear span not less than thirty feet measured on the square the underside of the girders not to be below the level of the underside of the adjacent girders carrying the existing railway over the existing outfall sewer of the council:
- (10) If within three months after receiving notice from the Company of their intention to proceed with the construction of the line or lines of rails (No. 1) over the road at the junction of Devonshire Street and Morpeth Street the council require the Company to pull down the brick arch bridge carrying the existing railway over the said road and to construct a new bridge over the said road and agree to contribute one equal moiety or half part of the cost occasioned by such pulling down and rebuilding as certified by the engineer of the Company for the time being and give to the Company notice in writing to that effect then the Company shall pull down the said brick arch bridge and shall construct a girder bridge for carrying both the existing railway and the line or lines of rails (No. 1) over the said road and such girder bridge shall have a headway over the said road for the full width thereof of not less than 15 feet 4 inches and a clear span throughout its entire length measured on the square of 40 feet and the council shall pay to the Company a moiety of such cost within three months after the completion of the work:
- (11) Notwithstanding anything contained in this Act or shown on the deposited plans the Company shall not acquire the piece of land forming the north-eastern corner or extremity of the public street

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known as Devonshire Street in the hamlet or parish of Mile End Old Town in the metropolitan borough of Stepney in the county of London and referred to in subsection (B) (1) of the section of this Act the marginal note whereof is "Power to Company to acquire additional lands" and shall not save as hereinafter mentioned stop up or discontinue for traffic such portion of Devonshire Street but the Company may in lieu of acquiring such piece of land build over such piece of land for the purpose of increasing their siding accommodation but in such manner as not in any way to stop up or interfere with permanently the surface of the said public street or the traffic therein and so as to leave a headway over the said piece of land of not less than 8 feet 6 inches:

- (12) If any difference shall arise between the Company and the council with respect to any of the matters referred to in subsections (6) and (7) of this section including any question as to approval or disapproval of plans elevations and sections and any directions of the council the same shall be referred to and be settled by an arbitrator to be agreed upon by the parties in difference or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protection of Stepney Borough Council.

25. With reference to the construction of works in on over or affecting highways streets roads or footways in the metropolitan borough of Stepney the following provisions shall unless otherwise agreed apply and have effect for the protection of the mayor aldermen and councillors of the said borough (who are in this section called "the Stepney Council") :—

- (1) Nothing in this Act contained shall authorise the temporary stopping up or closing of Devonshire Street or any interference with the free passage of traffic in such street otherwise than with the previous consent in writing of the Stepney Council:
- (2) All paving stones materials and things which at the passing of this Act shall be vested in or shall belong

to the Stepney Council in any of the portions of Devonshire Street or Moody Street which the Company are by this Act authorised to stop up shall notwithstanding any such stopping up remain the property of the Stepney Council and at any time after the stopping up by the Company of any such portions of the said streets as aforesaid all such paving stones materials and things therein as may belong to the Stepney Council shall upon the request of the Stepney Council be taken up by the Company and stacked and placed on ground belonging to the Stepney Council as they shall direct:

- (3) The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall extend and apply to any electric mains conduits cables or lines of the Stepney Council which may be interfered with under the powers of this Act as if such mains conduits cables or lines were water or gas pipes within the meaning of the said provisions and as if "local authority" were mentioned in those sections in addition to "company or society" Provided that any penalties recovered under section 23 of the said Act shall be appropriated to that fund of the Stepney Council to which their revenues in respect of electric lighting are appropriated:
- (4) If the Company break up or disturb the surface of Devonshire Street or the footways of the said street they shall so soon as the works affecting such street or footways are completed restore the same to as good a condition as they were in when the same were broken up or disturbed and shall keep the same in repair for twelve months thereafter under the superintendence and to the reasonable satisfaction of the engineer of the Stepney Council and if the Company fail to comply with the requirements of this subsection the Stepney Council may if they think fit restore the said street or footway so broken up or disturbed and recover the expense of such restoration from the Company:
- (5) The road under the bridge for carrying the line or lines of rails (No. 1) over Devonshire Street may if the same be necessary be reasonably and properly lighted

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by the Stepney Council at the expense of the Company In constructing the said bridge the Company shall face the abutments with white glazed bricks and shall at all times keep the surface of such bricks clean and in good repair to the reasonable satisfaction of the Stepney Council:

- (6) If any difference shall arise between the Company and the Stepney Council or their respective engineers with respect to any of the matters in this section referred to the same shall be referred to and be settled by an arbitrator to be agreed upon by the parties in difference or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protection of mayor aldermen and burgesses of county borough of West Ham.

26. For the protection of the mayor aldermen and burgesses of the county borough of West Ham (in this section referred to as "the corporation" and "the borough" respectively) the following provisions shall have effect unless otherwise agreed in writing between the corporation and the Company (that is to say):—

- (1) Where any of the works to be done under or by virtue of this Act other than the works respectively described in subsections (D) and (E) of the section of this Act of which the marginal note is "Power to execute works" shall or may pass under over or by the side of so as to interfere with any sewer drain pipe watercourse river wall defence or work under the jurisdiction or control of the corporation or shall or may in any way affect the sewerage or drainage of the borough the Company shall not commence such works unless they shall have given to the engineer of the borough at least one month's previous notice in writing of their intention to commence the same by leaving such notice at his office with a plan and section and other necessary particulars of the proposed construction of the said works so far as they interfere with any sewer drain pipe watercourse river wall defence or work under the jurisdiction or control of the corporation and until the said engineer shall have signified his approval of the same unless

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such engineer fail to signify such approval or disapproval or other directions within one month after delivery or service of the said notice plan section and particulars as aforesaid and the Company shall comply with and conform to all reasonable directions and regulations of the said engineer in the execution and also the subsequent maintenance of the said works so far as they are on the land of the Company and shall provide by new altered or substituted works in such manner as the said engineer may reasonably deem necessary for the proper protection of and for preventing injury or impediment so far as such injury or impediment may have been caused by the acts of the Company to the sewers drains pipes watercourses river walls defences and other works hereinbefore referred to and shall save harmless the corporation against all and every reasonable expense to be occasioned thereby and all such works of the Company so far as they interfere with any sewer drain pipe watercourse river wall defence or work under the jurisdiction or control of the corporation shall be done under the superintendence and control of the said engineer at the reasonable costs charges and expenses in all respects of the Company and all such reasonable costs charges and expenses which the said engineer may properly be put to by reason of the works of the Company whether in the execution of works examination of plans or designs superintendence or otherwise shall be paid to the corporation by the Company on demand and when any new altered or substituted works as aforesaid or any works connected therewith shall be completed by or at the costs charges or expenses of the Company under the provisions of this Act the same shall ever thereafter so far as they are on the land of the Company be maintained by the Company to the reasonable satisfaction of the said engineer and the said works shall be as fully and completely under the direction jurisdiction and control of the corporation as any sewer drain pipe watercourse river wall defence or work now is or hereafter may be If any dispute shall arise as to the mode of executing any such works aforesaid or as to the reasonableness of

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any requirement of the corporation or the said engineer such matters in difference shall be determined by arbitration of an arbitrator to be agreed upon between the corporation and the Company or failing agreement to be appointed in accordance with the Arbitration Act 1889:

- (2) Notwithstanding anything contained in the preceding subsection of this section the Company shall be at liberty to fill in and utilise the site of the ditch or drain running through the lands numbered 4 in the parish and county borough of West Ham on the deposited plans for the additional lands at Stratford:
- (3) The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall extend and apply to any electric mains conduits cables or lines of the corporation which may be interfered with under the powers of this Act as if such mains conduits cables or lines were water or gas pipes within the meaning of the said provisions and as if "local authority" were mentioned in those sections in addition to "company or society" Provided that any penalties recovered under section 23 of the said Act shall be appropriated to that fund of the corporation to which their revenues in respect of electric lighting are appropriated:
- (4) If the Company under any of the powers conferred upon them by this Act acquire any lands houses or buildings in the borough and the amount of any general district rate levied in the borough by the corporation in respect of such lands houses or buildings shall in any year be less than the amount of such rate leviable during the year ending thirty-first March one thousand nine hundred and fifteen in respect of such lands houses or buildings by reason of such lands houses or buildings being acquired by the Company under the powers or for the purposes of this Act the Company shall from time to time on demand make good such deficiency by payment thereof to the corporation until the works or buildings for the purpose of the construction of which the lands houses or buildings are acquired

shall be completed and liable to be assessed to such general district rate Provided always that for the purposes of this subsection the rate leviable on the Thames Ironworks for the year aforesaid shall be deemed to have been leviable on a net annual value of one thousand pounds. A.D. 1915.

27. For the protection of the Ilford Urban District Council (in this section referred to as "the council") the following provisions shall have effect unless otherwise agreed in writing between the Company and the council (that is to say) :— For protection of Ilford Urban District Council.

- (1) Notwithstanding anything in this Act contained the Company before they stop up any portion of the footpath numbered 1 on the deposited plans in the parish and urban district of Ilford and before they lay down any sidings or lines of rails across the said footpath shall extend the existing footbridge over the portion of the footpath proposed to be stopped up or across which any such sidings or lines of rails are proposed to be constructed such extended footbridge to follow as nearly as practicable the line of the footpath so stopped up and to be of the same width and construction and on the same level as the footbridge now existing over the Company's railway at the southern end of the said footpath Provided that both the present footbridge and the extension thereof shall be provided with closed sides and that the same shall be maintained by the Company at their expense :
- (2) The Company shall before laying down any sidings or lines of rails across the said footpath properly surround with a covering of Portland cement concrete not less than six inches in thickness so much of the sewer of the council in or under such portion of the said footpath across which such sidings or lines of rails will be laid and shall afford to the council reasonable facilities for obtaining access thereto :
- (3) The Company shall at all times afford to the council all reasonable facilities for the fixing maintaining and lighting by and at the expense of the council upon any footbridge constructed by the Company under the provisions of this section of electric or

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other lamps for lighting such footbridge Provided that any initial expense incurred by the council in making necessary alterations in the lighting apparatus of the existing portion of the footpath over which such bridge is to be constructed owing to the works of the Company shall be defrayed and borne by the Company :

(4) The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall extend and apply to any electric cables of the council which may be interfered with under the powers of this Act as if such cables were water or gas pipes within the meaning of the said provisions and as if "local authority" were mentioned in those sections in addition to "company or society" Provided that any penalties recovered under section 23 of the said Act shall be appropriated to that fund of the council to which their revenues in respect of electric lighting are appropriated :

(5) Any difference which shall arise between the Company and the council under the provisions of this section shall be referred to and determined by an engineer to be appointed failing agreement between the council and the Company on the application of either of them by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protec-
tion of Me-
tropolitan
Water Board.

28. For the protection of the Metropolitan Water Board (in this section referred to as "the board") the following provisions shall unless otherwise agreed in writing between the board and the Company have effect (that is to say):—

(1) The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply (so far as they are not inconsistent with the provisions of this section) to the mains pipes valves hydrants plugs or other works (in this section called "apparatus") of the board and shall be construed as if the board were mentioned in those sections in addition to "company or society" Provided that any penalties recovered under section 23 shall be appropriated to the water fund established by the Metropolis Water Act 1902:

(2) The Company shall construct the bridge or viaduct for carrying the line or lines of rails (No. 1) by this Act authorised over Devonshire Street so that the foundations of the abutments thereof shall be carried down to the same depth as the underside of the existing mains of the board in or under Devonshire Street or Morpeth Street but not exceeding a depth of 4 feet below the surface of the said streets: A.D. 1915.

(3) Whenever by reason or in consequence of the stopping up of the portion of Moody Street by this Act authorised any apparatus of the board situate in or under the said portion of Moody Street shall be rendered derelict or unnecessary the Company shall forthwith after such stopping up pay to the board such a sum as may be agreed between the board and the Company or as failing such agreement may be determined by arbitration as hereinafter provided to be the value of—

(A) The apparatus situate in and under the said portion of Moody Street; and

(B) Any apparatus of the board connected with the property of the board and used exclusively for the purposes of the supply of water to any premises to which a supply is furnished by means of the apparatus in and under the said portion of Moody Street:

(4) In addition to the payment referred to in the last preceding subsection of this section the Company shall pay to the board their charges of and incidental to the cutting off of any such apparatus as is referred to in the said subsection from any other apparatus of the board and of and incidental to any other works or things rendered necessary or expedient in consequence of any apparatus of the board being rendered derelict or unnecessary by the stopping up of the said portion of Moody Street:

(5) Not less than twenty-eight days before commencing to interfere with any portion of Devonshire Street or Morpeth Street in or under which any apparatus of the board is situate or otherwise affecting any such apparatus the Company shall deliver to the board a

A.D. 1915.

plan section and description of the works proposed so far as the same may interfere with any such apparatus describing the proposed manner of executing the same:

- (6) The board may at any time within twenty-eight days of the receipt of such plan section and description by notice in writing intimate to the Company their requirements so far as such works involve interference with the apparatus of the board and they may (in addition to any other rights or powers conferred upon them by this section) require the Company to provide and lay down such works and apparatus as may be reasonably required by the board and to remove raise sink or otherwise alter the position of the apparatus and support the same and to substitute temporarily or otherwise other apparatus in such manner as may be specified by the board and to lay or place under any apparatus cement concrete or any other like substance Provided that if the board shall not within the said period of twenty-eight days give any such notice in writing to the Company as aforesaid they shall be deemed to have no requirements to intimate to the Company:
- (7) The Company shall carry out such works as aforesaid in accordance with the said plan section and description delivered to the board and shall carry out all works in connection with the apparatus of the board as may be approved by the board or settled by arbitration:
- (8) Not less than twenty-eight days before commencing such works as aforesaid the Company shall give to the board notice in writing of their intention to commence the same and shall state in such notice the place and time at which they propose so to commence and if within fourteen days after the receipt of such notice the board shall give notice to the Company of their intention themselves to lay down any substituted apparatus or to execute any other works referred to in this section to or in connection with any apparatus of the board it shall be lawful for the board instead of the Company to lay down such apparatus or execute such works and the

cost incurred by them in so doing shall on demand be repaid to the board by the Company: A.D. 1915.

- (9) The board may if they deem fit employ a reasonable number of watchmen or inspectors to watch any works to be executed by the Company under this section whereby any apparatus of the board will or may be interfered with or affected and the reasonable expenses thereof shall be borne by the Company and be paid by them upon demand to the board:
- (10) The reasonable expenses of all repairs or renewals of any apparatus of the board or any works in connection therewith which may be rendered necessary by reason of any subsidence resulting from the works of the Company whether during the construction of such works or within twelve months thereafter shall be borne by the Company and paid by them on demand to the board:
- (11) Any difference between the board and the Company which shall arise with respect to any of the matters under the provisions of this section shall be referred to and settled by an arbitrator to be agreed upon or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such settlement by arbitration.

29. Seven days before entering upon breaking up or interfering with any public streets or roads under the provisions of this Act within the Metropolitan Police District the Company shall serve notice in writing on the Commissioner of Police of the metropolis and make such arrangements as he may reasonably require with regard to the position of the road works and hoardings and the continuous carrying on of the work in order to minimise the interference with the street traffic. As to works within Metropolitan Police District.

30. Notwithstanding anything contained in this Act or shown on the deposited plans or described in the deposited books of reference the Company shall not without the licence of the Port of London Authority enter upon take appropriate or use any portion of the bank bed or foreshore of the River Thames or Bow Creek vested in the Port of London Authority. For protection of Port of London Authority.

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For protec-
tion of
Southend-
on-Sea Cor-
poration.

31. Notwithstanding anything contained in this Act or shown upon the deposited plans the following provisions for the protection and benefit of the mayor aldermen and burgesses of the county borough of Southend-on-Sea (in this section called "the corporation") shall unless otherwise agreed between the corporation and the Company apply and have effect (that is to say) :—

- (1) Before the Company stop up the footpath leading from Albion Road to East Street Prittlewell in the county borough of Southend-on-Sea referred to in the section of this Act of which the marginal note is "Power to Company to acquire additional lands" and before the Company construct any works upon the lands in that borough referred to in the said section they shall give to the corporation at least fourteen days' notice in writing of their intention so to do and they shall divert to the reasonable satisfaction of the corporation and under the superintendence of their engineer (if he shall give such superintendence) the existing sewer of the corporation now situate under the footpath so proposed to be stopped up and shall reconstruct the same or lay down a new sewer in lieu thereof to the like satisfaction and under the like superintendence under the footpath as diverted by the Company in pursuance of the provisions of the said section :
- (2) The said sewer shall be diverted and reconstructed in accordance with such plans and sections as shall have been previously submitted to and reasonably approved by the engineer to the corporation. Provided that if for fourteen days after the submission of such plans and sections the said engineer shall not have intimated his disapproval he shall be deemed to have approved the same :
- (3) If within the period of fourteen days hereinbefore referred to the corporation give notice in writing to the Company that they desire themselves to divert and reconstruct the said sewer in the manner aforesaid it shall be lawful for the corporation so to do and the reasonable expense incurred by them in so doing shall be repaid to them by the Company :

- (4) If any difference shall arise between the Company and the corporation in respect of any matters under this section such difference shall unless otherwise agreed be settled by an arbitrator to be appointed failing agreement on the application of either party after notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration. A.D. 1915.

32. For the protection of the Norfolk and Suffolk Joint Railways Committee (in this section called "the committee") the following provisions shall unless otherwise agreed in writing between the Company and the committee apply and have effect (that is to say):— For protection of Norfolk and Suffolk Joint Railways Committee.

- (1) In exercising the powers conferred upon the Company by the section of this Act of which the marginal note is "Power to Company to acquire additional lands" so far as such powers relate to lands the property of the committee in the county of Suffolk (Eastern Division) in the parish and borough of Lowestoft described in subsection (H) (3) relating to the said parish and borough the Company shall not acquire but shall leave in the hands of the committee a strip of land (part of the said lands) 15 feet wide along the northern side of the railway of the committee for the whole length of the said lands:
- (2) Forthwith after the completion of the purchase of the said lands (less the said strip) the Company shall at their own expense and to the reasonable satisfaction of the engineer of the committee erect and the Company shall at all times thereafter at the like expense and to the like satisfaction maintain along the northern boundary of the said strip a new fence similar in character to the present northern fence of the railway of the committee.

33. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be Owners may be required to sell parts only of certain lands and buildings.

A.D. 1915. severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are hereinafter in this section included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties":
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed:
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company

being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:

- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner:
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

A.D. 1915. The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Period for compulsory purchase of lands.

34. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Lands for extraordinary purposes.

35. The Company in addition to any other lands which by this or any other Act they are authorised to acquire may by agreement from time to time purchase additional land for any of the extraordinary purposes specified in the Railways Clauses Consolidation Act 1845 connected with their undertaking not exceeding in quantity fifty acres but nothing in that Act or in this Act shall exempt the Company from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land purchased under the powers of this section.

Persons under disability may grant easements &c.

36. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to Company to enter upon property for survey and valuation.

37. The Company and their surveyors officers contractors and workmen may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards from time to time twelve hours' previous notice enter upon and into the lands houses and buildings by this Act authorised to be taken and used as aforesaid or any of them for the purpose of surveying and valuing the said lands houses and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands houses and buildings.

Costs of arbitration in certain cases.

38 The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Company award and declare whether a statement

in writing of the amount of compensation claimed has been delivered to the Company by the claimant giving sufficient particulars and in sufficient time to enable the Company to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Company has been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant. Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Company to amend the statement in writing of the claim delivered by him to the Company in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Company if they object to the amendment and such amendment shall be subject to such terms enabling the Company to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case. Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

A.D. 1915.

39. In settling any question of disputed purchase-money or compensation payable under this Act by the Company the court or person settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the thirty-first day of October one thousand nine hundred and fourteen if in the opinion of such court or person the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Compensation in case of recently altered buildings acquired by Company.

40. Where this Act authorises the diversion of a public footpath and the stopping up of an existing public footpath or any portion thereof such stopping up shall not take place until two justices shall have certified that the new footpath has been completed to their satisfaction and is open for public use.

Stopping up footpaths in case of diversion.

As from the date of the said certificate all rights of way over or along the existing footpath or portion thereof shall be

A.D. 1915. — extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portion of footpath stopped up as far as the same is bounded on both sides by lands of the Company.

Extinguishing rights of way over roads and footpaths stopped up.

41. As from the date of the stopping up (otherwise than in connection with a diversion) of an existing public road street or footpath or any portion thereof under the powers of this Act all rights of way over or along the existing road street or footpath or portion thereof shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the road street or footpath or the portion of road street or footpath stopped up so far as the same is bounded on both sides by lands of the Company.

As to repair and maintenance of new footpaths.

42. The diversions of footpaths to be made under the authority of this Act shall unless otherwise agreed or otherwise specially provided for by this Act when made and completed respectively be repaired and maintained by and at the expense of the parties on whom the expense of maintaining the portions of the footpaths for which the diverted footpaths are substituted now devolves.

As to private rights of way.

43. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished and the Company shall make full compensation to all parties interested in respect of any such rights or any private rights of way extinguished by virtue of this Act over any portion of road street or footpath by this Act authorised to be stopped up or diverted by the Company and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Extension of time limited for completion of works authorised by former Acts.

44.—(1) The period now limited for the completion of the following work (namely) :—

The widening and improvement authorised by section 5 subsection (f) of the Great Eastern Railway (General Powers) Act 1897 of the Company's Ware and Hertford branch railway

is hereby further extended for a period of three years from the A.D. 1915.
fifteenth day of July one thousand nine hundred and fifteen. —

(2) The period now limited for the completion of the following work (namely) :—

The widening and improvement (No. 2) of the Company's main line at West Ham authorised by section 4 subsection (D) of the Great Eastern Railway (General Powers) Act 1900

is hereby further extended for a period of three years from the thirtieth day of July one thousand nine hundred and fifteen.

45. The periods respectively limited by the Act of 1912 for the compulsory purchase of lands for and for the completion of the following works authorised by section 6 of that Act (namely) :—

Extension of time for purchase of lands for and for completion of certain works authorised by Act of 1912.

The deviations and improvements (No. 1) and (No. 2) of the Company's Beccles to Yarmouth line with swing bridges for carrying the deviated railways over the River Waveney described in paragraphs (1) and (2) of subsection (F) of the said section 6

are hereby extended as follows :—

The period for the compulsory purchase of the said lands for a period of two years from the seventh day of August one thousand nine hundred and fifteen; and

The period for completion of the said works for a period of three years from the seventh day of August one thousand nine hundred and seventeen.

46. The period limited by the Act of 1912 for the compulsory purchase of lands for the following works authorised by section 6 of that Act and described respectively in subsections (A) (C) (D) and (E) of that section (that is to say) :—

Extension of time for compulsory purchase of lands for certain works authorised by Act of 1912.

The widening and improvement (No. 1) and the widening and improvement (No. 2) of the Company's Norwich to Cromer line of railway;

The widening and improvement (No. 4) the widening and improvement (No. 5) the widening and improvement (No. 6) and the widening and improvement (No. 7) of the Company's Felixstowe branch railway;

The widening and improvement (No. 8) of the Company's Ely and Newmarket branch railway; and

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The widening and improvement (No. 9) of the Company's
Cambridge main line

is hereby extended for a period of two years from the seventh
day of August one thousand nine hundred and fifteen.

Extension of
time for com-
pulsory pur-
chase of lands
by Great
Northern and
Great Eastern
Joint Com-
mittee.

47. The period limited by the Act of 1912 for the
compulsory purchase by the Great Northern and Great Eastern
Joint Committee of the lands authorised to be acquired by
and described in section 31 of that Act is hereby extended for
a period of two years from the seventh day of August one
thousand nine hundred and fifteen.

Amendment
of new pen-
sion supple-
mental
scheme.

48. The pension supplemental committee appointed under
the provisions of the Great Eastern Railway (Pensions) Act 1898
(in this section called "the Act of 1898") for the administration
of the new pension supplemental scheme established under the
provisions of that Act may by a majority of its members make
such alterations in or additions to the rules and regulations
contained in the said scheme as may be agreed upon between
the said committee and the directors of the Company for the
purpose of providing that in the case of persons engaged by
the Company in piecework (whether such persons are engaged
wholly in piecework or partly in piecework and partly by time)
who would not otherwise be eligible for membership of the
new pension supplemental fund established under the provisions
of the Act of 1898 or who being eligible for such membership
would not be eligible for membership of class A thereof the
earnings of such persons engaged in such piecework shall be
deemed to be wages within the meaning of that term as used
in the Act of 1898 and the said rules and regulations.

Stone throw-
ing at trains.

49. Any person who shall unlawfully throw or cause to
fall or strike at against into or upon any engine tender carriage
or truck used upon any of the railways now or hereafter
belonging or leased to or worked by the Company solely or in
conjunction with any other company or companies or by any
joint committee on which the Company is represented any wood
stone or other matter or thing likely to cause injury or damage
to persons or property shall on conviction be liable to a penalty
not exceeding forty shillings and the provisions of the Railways
Clauses Consolidation Act 1845 with respect to the recovery of
damages not specially provided for and of penalties and to the
determination of any other matter referred to justices shall
apply to this enactment Where the person charged is a male

under the age of fourteen years the court of summary jurisdiction before whom the offender is charged shall on conviction have the same powers as are conferred upon them by section 10 subsection (1) (D) of the Summary Jurisdiction Act 1879. A.D. 1915.

50. Any person who shall without reasonable and sufficient cause make use of any means of communication between the passengers and the servants of the Company in charge of any train travelling on the railways now or hereafter belonging or leased to or worked by the Company solely or in conjunction with any other company or companies or by any joint committee on which the Company is represented shall on conviction be liable to a penalty not exceeding five pounds and the provisions of the Railways Clauses Consolidation Act 1845 with respect to the recovery of damages not specially provided for and of penalties and to the determination of any other matter referred to justices shall apply to this enactment. Unlawful use of means of communication.

51. The Company may raise and apply for or towards any of the purposes of this Act to which capital is properly applicable any money which they are authorised to raise by any other Act or Acts or Order and which may not be required for the special purposes (if any) for which that money was authorised to be raised. Power to apply existing funds.

52.—(1) The Company may for the purpose of raising additional sums of money for the purposes of this Act and of any of their existing Acts and for other purposes of their undertaking from time to time create and issue shares or stock not exceeding in the whole in nominal amount one million pounds and such shares or stock may be either wholly or partly preference shares or preference stock or wholly or partly ordinary shares or ordinary stock and with any fixed fluctuating contingent preferential perpetual terminable deferred or other dividend or interest and with or without provision for the amalgamation of any such shares or stock with the ordinary stock for the time being of the Company And the provisions contained in section 78 of the Great Eastern Railway Act 1876 shall be applicable with respect to any shares or stock which may be created and sections 81 and 82 of the said Act shall also be applicable with respect to any shares so created. Power to raise additional capital.

(2) All shares or stock created by the Company under this section shall subject to the provisions of this Act form part of the general capital of the Company. Shares or stock to form part of Company's general capital.

A.D. 1915. (3) The provisions of section 60 of the Act of 1912 shall
 As to voting. extend and apply to any ordinary or preference shares or stock
 of the Company which may be issued under the provisions of
 this section.

Power to
 borrow on
 mortgage.

53. The Company may in respect of the additional capital of one million pounds which they are by this Act authorised to raise by the creation and issue of shares or stock from time to time borrow on mortgage of their undertaking such sums as they think fit not exceeding in the whole three hundred and thirty-three thousand three hundred and thirty-three pounds (that is to say) when one hundred and fifty thousand pounds in respect of such additional capital has been bonâ fide paid up and certified as hereinafter mentioned they may borrow on mortgage any sum of money not exceeding fifty thousand pounds and a like additional sum of fifty thousand pounds when every further sum of one hundred and fifty thousand pounds up to nine hundred thousand pounds has been bonâ fide paid up and certified as hereinafter mentioned and the balance of thirty-three thousand three hundred and thirty-three pounds when the remaining one hundred thousand pounds of capital has been bonâ fide paid up and certified as hereinafter mentioned but no such borrowing powers shall be exercised by the Company until they shall prove to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that shares or stock for raising such additional capital or some part thereof have been bonâ fide paid up to the extent in money of one hundred and fifty thousand pounds or one hundred thousand pounds as the case may be in respect of every sum of fifty thousand pounds or of the balance of thirty-three thousand three hundred and thirty-three pounds as the case may be intended to be borrowed and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proofs aforesaid have been given which certificate shall be sufficient evidence thereof.

Existing
 mortgages
 to have
 priority.

54. All mortgages granted by the Company in pursuance of the powers of any Act of Parliament before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and subject to the provisions of the Acts under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of

the interest of any debenture stock at any time created and issued by the Company. A.D. 1915.

55. The provisions of all former Acts relating to the Company authorising the appointment of a receiver for principal or interest moneys due upon any mortgages of the Company are hereby repealed but subject and without prejudice to any appointment of a receiver or proceedings taken under or by virtue of such appointment and in force or pending at the time of the passing of this Act.

Repealing provisions of former Acts for appointment of a receiver.

56. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

For appointment of a receiver.

57. The Company may create and issue debenture stock to the same nominal amount as they are by this Act authorised from time to time to borrow on mortgage subject to the provisions of Part III. of the Companies Clauses Act 1863 as amended by subsequent Acts but notwithstanding anything therein contained the interest of all debenture stock at any time after the passing of this Act created and issued by the Company shall rank *pari passu* with the interest of all mortgages at any time after the passing of this Act granted by the Company and shall have priority over all principal moneys secured by such mortgages.

Debenture stock.

58. All moneys raised under this Act whether by shares stock mortgages or debenture stock shall be applied only to the purposes authorised by this Act or by any other Act or Acts relating to the Company passed or to be passed during the present or any previous session of Parliament and to the general purposes of the undertaking of the Company being in each case purposes to which capital is properly applicable.

Application of capital under Act.

59.—(1) Notwithstanding the provisions of this Act or any Act of Parliament relating to the Company or any Acts incorporated therewith the directors of the Company may from time to time in respect of the capital authorised to be raised by the Company by the creation and issue of preference shares or stock whether under this Act or any previous Act and any debenture

Issue of redeemable preference shares or stock and debenture stock.

A.D. 1915. — stock which the Company or the directors of the Company are authorised to create and issue whether under this Act or any previous Act without any further authority than is given by this section raise such capital or any portion thereof and create and issue such preference shares or stock and such debenture stock subject to the conditions that the same shall be redeemed by the Company at such times and in such manner and on such terms and conditions as the directors of the Company shall determine and it shall be lawful for the directors of the Company from time to time to reissue shares or stock originally issued under this section or to create and issue new shares or new stock whether ordinary or preference and as regards any preference shares or stock whether redeemable or otherwise and new debenture stock whether redeemable or otherwise for the purposes of redemption of or in substitution for any such redeemable preference shares or stock or debenture stock as the case may be. Provided that nothing in this section contained shall be deemed to authorise the creation and issue of shares or stock or debenture stock beyond the nominal amounts authorised to be created and issued by this Act or any previous Act relating to the Company.

(2) The directors of the Company may from time to time set apart out of income after providing for the payment of interest on any mortgages bonds or debenture stock or preference shares or stock of the Company such sums as they may consider necessary for the purpose of redeeming any redeemable preference shares or stock or debenture stock which they may desire to redeem otherwise than by the issue of new shares or stock or debenture stock under the powers of this section.

(3) No preference share or stock subject to redemption shall entitle any holder thereof to rights of voting or qualify such holder to become a director of the Company.

(4) The powers conferred upon the Company by section 78 of the Great Eastern Railway Act 1876 may be so exercised as to enable the directors of the Company to issue the preference shares or stock referred to in this section or any part or parts thereof as of one class or several classes as the said directors may think fit.

Treasury
consent ne-
cessary to
raising

60. Notwithstanding anything in this Act the Company shall not under the powers of this Act raise or borrow any money during the continuance of the present war and twelve

months thereafter unless the consent of the Treasury has been previously obtained.

A.D. 1915.

money during
war &c.

61. No interest shall be paid out of any share or loan capital which the Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him But nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

Interest not
to be paid
out of
capital.

62. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking.

Deposits for
future Bills
not to be
paid out of
capital.

63. Nothing in this Act contained shall exempt the Company or their railway from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company.

Provision as
to general
Railway
Acts.

64. The costs charges and expenses preliminary to and of and incidental to the preparing and applying for and the obtaining and passing of this Act shall be paid by the Company.

Expenses of
Act.

A.D. 1915.

The SCHEDULE referred to in the foregoing Act.

DESCRIBING PROPERTIES WHEREOF PORTIONS ONLY MAY BE
REQUIRED TO BE TAKEN BY THE COMPANY.

Work or Lands.	Nos. on deposited Plans.	Parish or other Area.	Description of Property.
The railway - -	12	Parish and borough of Chelmsford.	Garden glasshouses out-buildings and sheds.
	13	Ditto - - -	Field.
The widening - -	10	Parish and urban district of Romford.	Land and drain.
	11	Ditto - - -	Field and pump house gas and water mains under.
Line or lines of rails No. 3.	2	Parish and county borough of West Ham.	Ropewalk yard stables and premises.
	3	Ditto - - -	Land and wharf.
	4	Ditto - - -	Land.
Additional lands at North Woolwich.	1	Parish of Woolwich	Land.
Additional lands at Harold Wood.	1	Parish of Hornchurch	Field.
	2	Ditto - - -	Land.
	3	Ditto - - -	Land and siding.
Additional lands at Southend.	2	Parish and county borough of Southend-on-Sea.	Brickfield and works footpath cart-roads stables and sheds telegraph and telephone posts and wires sewer under.
Additional lands at Dovercourt.	1	Parish of Dovercourt borough of Harwich.	Land and shed.

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